

Sardhana Spinning Mills Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 3 March 2023 · Writ-C No. 32052 of 2013 · **Writ dismissed for want of prosecution.**

HEADNOTE

Writ challenging additional security under para 4.20 of the U.P. Electricity Supply Code, 2005, earlier connected with similar pending matters and protected by an interim restraint, dismissed for want of prosecution when none appeared for the petitioner even on revised call.

FACTUAL SUMMARY

Sardhana Spinning Mills Pvt. Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand of additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. On 31 May 2013 the Court connected the petition with Writ Petition No. 30582 of 2009 and similar pending matters, allowed three weeks for a counter affidavit, and, without prejudice, restrained the respondents from demanding additional security until further orders, following the interim order in the connected writ. On 3 March 2023 none appeared for the petitioner even on revised call.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging demand of additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed for want of prosecution when none appeared for the petitioner even on revised call; the legality of that demand was not decided. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY COULD LAWFULLY BE DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005.

Petition was connected with similar pending challenges and given an interim restraint in 2013, but was never heard on merits. ¶ 1-2